REPUBLIC OF SOUTH SUDAN



STAFF CODE OF CONDUCT AND ETHICS

2022

STAFF CODE OF CONDUCT AND ETHICS

Table of Contents

1. Commitment to the Code
2. Purpose
3. Compliance with the Code
4. Core Values
5. Guiding Values
6. Dishonour to the Authority
7. Ethical
8. Official Working Hours
9. Acceptable Behavior
10. Dress Code
11. Conflict of Interest
12. Gifts and other Benefits
13. Soliciting, Accepting Bribes and Inducements
14. Staff Obligations on Matters of Ethics and Integrity
15. Misuse of the Property of the Authority
16. Intellectual Theft
17. Personal Conduct on or Off-Duty
18. Confidentiality
19. Harassment and Working Environment
20. Sexual Harassment and Abuse
21. Misuse or Misallocation of Human Resources
22. Discrimination
23. Nepotism or Favoritism
24. Outside Employment or Business
25. Selection of Staff
26. Misleading the Public or Impersonation
27. Reporting Malpractices
28. Chain of Command

29 Collective Responsibility

30. Observance of Statutory Provisions
31 Maintaining the Authority Corporate Culture
32. Procurement of Goods and Services
33. Concern for Health, Safety and the Environment
34. Claims
35. Acting through Others
36. Participation in Politics
37. Enforcement of the Code of Conduct and Ethics
38. Operation and Observance of Code of Conduct and Ethics

FOREWORD

The NRA Staff Code of Conduct and Ethics spells out the principles, standards, and the moral and ethical expectations that NRA employees and third parties shall be held to by the Authority. In other words, the NRA Staff Code of Conduct and Ethics defines desired behavior at the NRA workplace and in this way provides NRA employees with clear standards and expectations on how to do their jobs.

The NRA Staff Code of Conduct and Ethics promulgated by the Board at its extraordinary meeting held 12th April 2022 constitutes a significant beginning for the Authority as it demonstrates the importance that NRA attaches to the building of a culture of integrity within its human resources. From the very outset, NRA wants her employees as well as external stakeholders including taxpayers and their representatives, suppliers and other contractors, other Government entities, international partners and the general public to know that ethical behavior shall become a way of life at the NRA workplace and everybody will be expected to behave in a way, which promotes public confidence and trust in the National Revenue Authority.

The Board and Management of NRA are aware of the fact that, putting in place a staff code of conduct and ethics is a necessary condition for building and maintaining public confidence and trust but this, in itself is not sufficient. The NRA Staff Code of Conduct and Ethics must be understood, owned, enforced, and regularly reviewed by NRA employees in consultation with other stakeholders to ensure its continued effectiveness as well as its relevance.

The Board and Management of NRA expect full support from all NRA employees and external stakeholders by complying with all provisions of the NRA Staff Code of Conduct and Ethics. This will help them easily identify the boundaries between desirable and undesirable behaviour.

The Board and Management of NRA expect Senior Management of NRA to lead by example and put in place support mechanisms to make full use of the NRA Staff Code of Conduct and Ethics.

The Board and Management of NRA also expect all other stakeholders, internal and external, to take full cognizance of this NRA Staff Code of Conduct and Ethics and provide regular and honest feedback for its continual improvement for the benefit of the country and its great people.

Dr. Patrick K. Mugoya
Commissioner General

STAFF CODE OF CONDUCT AND ETHICS

1. Commitment to the Code

Authority affirms its commitment to this Code of Conduct and Ethics to behave in ways that promote mutual trust as well as public confidence.

2. Purpose

The purpose of this Code is to sets out standards of behavior and conduct, which all staff expect to adhere to, this Code serves as general guide to staff in the execution of their duties in their relationship with clients and the general public.

3. Compliance with the Code

Staff of the Authority shall comply with the requirements in the Code of Conduct and Ethics.

4. Core Values

(a) Integrity
(b) Impartiality
(c) Professionalism
(d) Teamwork
(e) Innovation
(f) Transparency and Accountability

5. Guiding Values

The Code of Conduct shall be guided by the following values:

(1) Integrity

(a) staff shall:
  (i) always act with integrity in dealing with clients, colleagues and stakeholders in highest ethical standards;
  (ii) conduct his or her private affairs in a way that maintains public confidence in the integrity of his or her office.
  (iii) to the best of his or her ability, carry out his or her duties efficiently, honestly and with integrity, and to ensure that the services are delivered justly.

(b) staff shall not:
  (i) ask or receive any gifts, tips or other personal benefits which may be seen against his or her integrity;
  (ii) engage in business or own shares in any company which provides services to Authority;
  (iii) violate the rights and freedoms of other staff, clients and members of the public;
  (iv) hold more than one job or receive more than one salary;

(v) knowingly give false or misleading information to members of the public or to any Authority staff or clients.

(2) Impartiality

A Staff shall discharge his or her duties in accordance with the Constitution and the existing applicable Laws and report illegal or unprofessional acts conducted by staff confidentially to appropriate authority and give fair and impartial treatment to the public irrespective of gender, race, religion, disability, ethnicity and political affiliation.

(3) Professionalism

(a) staff shall:
(i) show inspiration, and those in leadership positions shall lead by example and assist their subordinates to realize their potential;
(ii) discharge his or her responsibilities in a professional manner and not allow his or her emotions to interfere with his or her work;
(iii) attempt to carry out his or her work in a manner fitting his or her profession and position;
(iv) be calm, dependable, reliable, consistent and committed to his or her work;
(v) execute his or her duties responsibly during designated hours;
(vi) comply with all lawful instructions from superiors.

(b) the Authority aims to build and maintain high levels of professional and ethical standards among its entire staff, which shall be fundamental in strengthening loyalty, social responsibility and transparency in all activities.

(4) Teamwork

The staff shall work in cooperation and collaboration share skills knowledge and experience to deliver quality results on time. promote a work environment that values teamwork, learning and respect for colleagues and the public.

(5) Innovation

The Authority shall encourage their staff to be creative and inventive to achieve its objectives.

(6) Transparency and Accountability

Authority efforts are geared towards the development in a manner, which promotes a transparent and accountable administration.

6. Dishonour to the Authority

Authority being a public institution shall strive to achieve good interpersonal relations among its staff in their public and private lives, not to bring ridicule and dishonour to the Authority.

7. Ethical

(a) Authority aspires to be a regional model of excellent ethical behaviour, it strategizes to achieve its vision by having staff of exemplary ethics, character and citizenship.

(b) This Code does not replace the terms and conditions of service of individual staff, but it is to be applied concurrently with the laws governing the operations of the Authority and other applicable laws.

8. Official Working Hours

(1) All Authority staff shall observe official working hours and shall not be absent without proper authorization or reasonable.

(2) Working hours shall be as follows:
(a) working hour starts at 8.00 a.m. to 5.00 p.m.
(b) one-hour lunch break from 12:00 noon to 1:00 afternoon.

(3) The Authority may be depending on the nature of customs staff determine a different time schedule or work in the Division and work on shift basis.

9. Acceptable Behavior

A staff shall not:

(a) Smoke in the Authority premises unless in designated areas.
(b) Report to work while under the influence of alcohol or drugs.
(c) Conduct himself or herself in a disorderly manner.

10. Dress Code

(1) All staff are expected to dress and keep themselves in a neat and tidy manner at all times, staffs shoulder responsibility of having due regards to decency of personal attire in accordance with corporate values and the Authority activities and for one's position in particular.

(2) Staffs shall adhere to the following dressing code during working hours or while on duty:
(a) male staff shall wear a trouser, shirt, tie and closed shoes;
(b) female staff shall wear decent and smart office dressing.

(c) staff shall not be allowed to wear jeans, skin-tight, shorts, T-shirts or indecent clothing.
(d) Staff shall not allow to wear clothes which portray political message and affiliation in office premises during working hours.

(3) Staff provided with uniforms and official attire for specific days shall put them on while on duty and are responsible for keeping their uniform clean and neat. Any alterations or repairs that become necessary shall be undertaken promptly

(4) Unskilled or support staff like drivers, cleaners, messengers and security-guards shall be provided with at least two pairs of uniforms per year,

(5) Each supervisor is responsible for interpreting and enforcing the dress code in his or her area of responsibility, this includes explaining the dress code to new staff, who are inappropriately dressed, and setting a good example themselves with proper dress for the job. In the event questions about suitability of a particular dress cannot be answered, the Commissioner for Corporate Service may be consulted.

(6) Any staff who does not adhere to the Authority dressing code shall not be allowed to enter the premises during normal working hours.

(7) Staff who lose any item of their uniform shall replace the item at their own cost unless it is clearly established that they are not responsible for the loss.

(8) Every member of staff shall maintain an appropriate and decent mode of clothing and personal hygiene at all times

(9) Fridays is a dress down day, staff may wear Authority branded shirts or T- shirts.

11. Conflict of Interest

(1) A conflict of interest is a situation in which a staff, for his or her personal gain or the benefit of others, attempts to promote a private or personal interest.

(2) A staff whose personal interest conflicts with his or her official duties shall declare such interest to the appropriate office or committee.

(3) A staff who has a personal interest in a subject matter shall refrain from participating in any deliberations or activities related to the matter.

12. Gifts and other Benefits

The offering of gifts or other benefits to staff by individuals or organisations may appear to be, an attempt by the outside source to influence a decision which the staff is expected or required to make, the integrity of the Authority can be undermined if there is a suspicion that decisions are being improperly influenced by offer of gifts and other benefits.

(a) Staff shall therefore not solicit or accept any gift or benefit of hospitality or other benefits that may have a real or apparent influence on our objectivity in carrying out our official duties or that may place us under obligation to the donor.

(b) In cases of gift of nominal value received as protocol or as courtesy or for cultural reason, the employee may accept it provided that it does not compromise or appear to compromise in any way the integrity of the employee or the integrity of the organisation.

(c) In cases of any incidental benefits obtained as a result of goods and services purchased with official funds the staff must ensure that it does not compromise or appear to compromise in any way his or her integrity or the integrity of the NRA. Where it is believed that there is sufficient benefit for the NRA to warrant acceptance of the gift, it shall not be regarded as the personal property of the staff, but rather as the property of the NRA.

(d) Staff shall immediately report to the Commissioner of the respective Division any case of or attempt of bribery.

13. Soliciting, Accepting Bribes and Inducements

A staff shall not use his or her office or place of work for soliciting, collecting or inducing bribes and favours.

14. Staff Obligations on Matters of Ethics and Integrity

(1) A staff shall at all times maintain absolute integrity and honesty in the discharge of his or her duties or in the exercise of his or her powers.

(2) Staff holding a supervisory position or any other staff who is placed in a position of authority over other shall take all responsible steps or precautions to ensure integrity and devotion to duty of all for the time being, under his or her control.

(3) Staff shall at all times discharge and perform his assignments, duties or obligations in a manner and to a satisfactory standard and acceptable to the Authority.

(4) Staff shall be liable to transfer from one division to another or to such other place or from one department to another and every staff who is subject of an order of transfer shall comply accordingly.

15. Misuse of the Property of the Authority

(1) All staff shall take all reasonable steps to ensure that the property of the Authority entrusted to his or her care is properly maintained and adequately protected from misuse or misappropriation.

(2) All staff shall ensure that the properties of the Authority are used for the intended purpose.

(3) Staff shall refrain from using the Authority's technological devices and resources to view, collect, exchange, or distributed restricted or unethical materials and programs.

16. Intellectual Theft

(1) Staff shall refrain from acts of cheating, plagiarism and impersonation in the production of any publication they are involved in its preparation.

(2) Staff shall not reproduce any Authority forms, documents and materials and sell the same for personal gain.

(3) Staff shall not falsify documents or records.

17. Personal Conduct on or Off-Duty

Whether on or off duty, staff shall conduct themselves in a manner that promotes a professional image both in words and actions, which reflects positively on the Authority at all times. Among others staff shall:

(a) be mindful of the Authority's prominence and reputation in the community.
(b) observe punctuality at all times in our work and not absent ourselves from the place of work without permission.
(c) make proper identification of themselves, when dealing with the public in the course of their duty whether through correspondence, by telephone calls, or in person. Such identification may not be required to be disclosed in circumstances that may endanger an investigation or undercover operations.
(d) not be under the influence of alcoholic beverages or any other substance with an intoxicating effect whilst at work.
(e) not indulge in frequent and excessive gambling.
(f) ensure that our personal financial problems, if any, shall not affect our efficiency at work and our integrity.
(g) not release or discuss with any member of the media any material of the Authority unless specifically authorised.
(h) not speak on behalf of the Authority or discuss the Authority's policies and procedures in articles, speeches or presentations unless officially authorised.
(i) not dress in a manner that undermines the reputation of the Authority or embarrass our colleagues whilst on duty.

18. Confidentiality

(1) Staff having access to confidential information shall not disclose such confidential information without permission.

(2) A staff shall ensure that records or data under his or her custody are regularly updated and shall maintain accurate records and treat all information as private and confidential.

(3) Staff shall protect the Authority records or data and ensure that unauthorized access to such records or data does not occur.

(4) Staff shall safeguard identity cards, keys, passwords and other security items entrusted to him or her.

(4) A staff dealing with confidential records or data shall be required to take the oath of secrecy.

19. Harassment and Working Environment

(1) A staff shall not harass a fellow staff or customer or member of the public.

(2) The Authority shall:

(a) promote a respectful work place culture that is free from any level of harassment, intimidation, bias or discrimination;
(b) adopt a zero-tolerance policy to violence in the workplace;
(c) prohibit violence related to but not limited to physical assault, fighting, threatening comments and intimidation.

(3) Staff shall keep our desk and office clean and tidy.

20. Sexual Harassment and Abuse

(1) Sexual harassment is defined as any unwelcome comment or conduct of a sexual nature that may detrimentally affect the work environment or lead to adverse job-related consequences for the victim of the harassment.

(2) A staff shall not "sexually harass" a fellow staff or a member of the public.

(3) A staff shall not maintain an improper sexual/ or emotional relationship with a fellow staff or a client where one of the parties is taking advantage of the other or use his or her position of authority to offer a benefit in exchange for sexual favors or threaten a person who refuse to engage on sexual relation, this includes inappropriate touching.

(4) A staff shall not victimize another member of staff or client as a result of any form of sexual harassment.

21. Misuse or Misallocation of Human Resources

(1) Staff shall take all reasonable steps to ensure that staffs entrusted under his or her direction and supervision are properly deployed and adequately utilized.

(2) A staff shall not deploy or use Authority staff for personal or private work.

22. Discrimination

A staff is expected to refrain from any form of discriminatory practices and stereotypes based on gender, religion, race, tribe, region, or origin, nepotism or position held.

23. Nepotism or Favoritism

A staff of the Authority shall not favor relatives, friends or associates in decision- making or provision of services, there shall be declaration of personal interest.

24. Outside Employment or Business

A member of staff shall not engage in any other business or part-time employment while is still in the employment of Authority

25. Selection of Staff

A staff shall practice and promote the principle that the staff of the Authority shall be:
(a) selected on the basis of integrity, competence, professionalism and suitability;
(b) selected without any form of bias or discrimination.

26. Misleading the Public or Impersonation

A staff shall not impersonate or misrepresent him or herself or other staff, clients or to the public.

27. Reporting Malpractices

A staff shall have an obligation to report any wrongdoing he or she is aware of in the Authority to his or her supervisor or his or her Head of Division or Department, the Commissioner for Corporate Services or the Commissioner General, the Authority shall adopt the whistle blow policy.

28. Chain of Command

A staff is expected to strictly adhere to the established chain of command (Organization organogram or structure) at all times and to desist from acts of insubordination or exercising powers that have not been properly granted.

29. Collective Responsibility

Every staff shall have an obligation to protect the name and image of the Authority and shall act in the best interest of the Authority at all times.

30. Observance of Statutory Provisions

All staff shall adhere to the statutory provisions of the law and the Authority policies, in the observation of such statutory provisions, staff shall take into considerations:

(a) any statutory obligation and in particular the provisions of the Authority policies.
(b) any directive or instruction from the public authorities having oversight role over Authority.
(c) any agreement entered into between the Authority and Workers Union.

31. Maintaining the Authority Corporate Culture

A staff shall ensure that positive traditions, values and norms that have been generated within the Authority in the past are upheld, enriched and passed on.

32. Procurement of Goods and Services

A staff charged with the duties of procuring goods and services for the Authority shall exercise due care and apply existing laws, policies, regulations and controls that shall ensure value for money to the Authority.

33. Concern for Health, Safety and the Environment

(1) A staff shall promote and uphold Authority policies and measures for the protection of health and safety for all staffs, clients and members of the public.

(2) Staff shall give proper regard to the protection and conservation of the environment.

34. Claims

A staff shall present only legitimate, genuine and accurate claims.

35. Acting through Others

A staff shall be deemed to have contravened the Code of Conduct and Ethics if he or she:

(a) causes anything to be done through another person that would, if the member of staff did it, be in contravention of the Code of Conduct and Ethics, or
(b) allows or directs a person under his or her supervision or control to do anything that is in contravention of the Code of Conduct and Ethics.

36. Participation in Politics

(1) All staff are free to become members of political parties, irrespective of one's membership status he or she shall conduct or engage him or herself with political activities after official hours and outside work premises.

(2) A staff shall not take part in political activities which compromise the Authority's decision.

(3) All staff shall not pass information or documents availed or seen to compromise their loyalty to the Government.

(4) All staff shall not provide biased services based on their political affiliations.

37. Enforcement of the Code of Conduct and Ethics

(1) There shall be disciplinary committees (for both junior and senior staff) established by the Commissioner General to receive complaints and determine whether or not the Authority staff has contravened the Code of Conduct and Ethics.

Composition of Disciplinary Committees and Disciplinary Authorities

Position/Grade	**Recommending Authority**	**Composition**	**Disciplinary Authority**
Board Appointees	Commissioner General		The Board
Assistant Commissioners, Chief Officers, Principal Officers and Senior Officers	Management Disciplinary Committee	One of the Commissioners as Chairperson and three (3) other Commissioners as members. Commissioner for Corporate Service as a member and Secretary	Commissioner General
Officers, Assistant Officers and below	Management Disciplinary Sub-Committee	One of the Commissioners as Chairperson and three (3) Deputy Commissioners as members, Assistant Commissioner for Human Resources as a member and Secretary	Commissioner General

(2) Half of the members of the disciplinary committee shall constitute a quorum for a meeting.

(3) A staff who contravenes this Code of Conduct and Ethics shall be summoned to appear before the respective disciplinary committee.

(4) Investigations may be conducted by the Internal Affairs Office and if the staff found to have violated the code appropriate legal action shall be taken.

(5) The disciplinary committee's decision shall be binding. Staff who is not satisfied with the committee's verdict may appeal to the Board within a period of fourteen (14) working days from the date of receiving the verdict of the Committee.

38. Operation and Observance of Code of Conduct and Ethics

(1) The code of Conduct and Ethics is formulated in accordance with the existing laws.

(2) Every staff is expected to comply with the provisions contained in the Code of Conduct and Ethics.

(3) Contravention of any of the provisions of the code shall be a tantamount to a breach of the Authority's rules and regulations which shall lead to disciplinary action.